

Father providing for debts of son.—In another case a testator directed his trustees to apply 1000*l.* in releasing his son from his liabilities, should the testator not have done so in his lifetime. The son was an uncertificated bankrupt, and the Court considering that debts subsequently to the testator's death were not contemplated, discharged the debts up to that period out of the 1000*l.*, and gave the surplus to the testator's residuary legatee (*d*).

3. Debts barred by the Statute of Limitations.—A direction for payment of debts will not *revive* a debt barred by the Statute of Limitations (*e*), though the trustee or executor may have advertised for *all* creditors to come in and prove their debts (*f*); and, if a debt might with due diligence have been established, but there has been *laches*

which under ordinary circumstances would be a bar [*520] to relief, the mere fact of the *creation and existence of a trust for payment of debts will not justify the *laches* and enable the claimant to obtain relief (*a*). But a will may be so specially worded as to create a trust for creditors generally, notwithstanding any bar from the Statute of Limitations, for the debts still subsist though the remedy is gone (*b*); and if there be a debt in fact not barred at the date of the deed, or at the death of the testator, the statute will not run afterwards (*c*); for it is not to be inferred that a man abandons his debt because he does not enforce payment at law when he has a trustee to pay him (*d*). Besides, unless delayed of necessity, the trustee ought to discharge the debt at once, and the universal rule is, that the *cestui que trust* ought not to suffer for the *laches* of the

(*d*) *Re Landon's Will*, W. N. 1871, p. 240.

(*e*) *Burke v. Jones*, 2 V. & B. 275, where the previous cases are collected; *Hargreaves v. Michell*, 6 Mad. 326; *O'Connor v. Haslam*, 5 H. L. Cas. 170. (*f*) *Jones v. Scott*, 1 R. & M. 255; 4 Cl. & Fin. 382; (overruling *Andrews v. Brown*, Pr. Ch. 385); and see *O'Connor v. Haslam*, 5 H. L. Cas. 177.

(*a*) *Harcourt v. White*, 28 Beav. 303.

(*b*) *Williamson v. Taylor*, 3 Y. & C. 208.

(*c*) *Hughes v. Wynne*, T. & R. 307; *Crallan v. Oulton*, 3 Beav. 1; *Hargreaves v. Michell*, 6 Mad. 326; *Executors of Fergus v. Gore*, 1 Sch. & Lef. 107; and see *Mors v. Langham*, cited *Burke v. Jones*, 2 V. & B. 286; *O'Connor v. Haslam*, 5 H. L. Cas. 178.

(*d*) *Hughes v. Wynne*, T. & R. 309, *per Cur.*